

TENTATIVE RULING FOR May 13, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2502315

ELIANA NUNEZ and STEVEN NUNEZ v. FCA US, LLC; JEEP CHRYSLER DODGE RAM FIAT OF ONTARIO

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On January 22, 2025, Plaintiffs Eliana and Steven Nunez filed a lemon law action against Defendants FCA US, LLC, and Jeep Chrysler Dodge Ram Fiat of Ontario. Plaintiffs allege the following causes of action: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of implied warranty of merchantability; and (5) negligent repair. The first through fourth causes of action are alleged against Defendant FCA; the fifth cause of action is alleged against Defendant Ontario.

Plaintiffs' action arises out of their purchase of a 2018 Dodge Durango on August 27, 2018.

Now before the Court is Defendant FCA's motion to compel the deposition of Plaintiff Eliana Nunez. FCA asserts that on December 8, 2025, Plaintiff Eliana Nunez appeared for her deposition, but was ill, so the parties agreed to postpone it. On December 8, 2025, FCA's counsel sent an email to reschedule it and followed up with several emails after that, but did not get any response. (Borrero Decl. ¶¶ 5-6.)

Thereafter, on January 22, 2026, FCA served a 2nd continued notice of deposition, and on January 29, 2026, Plaintiff Eliana Nunez served objections. (Borrero Decl. ¶¶ 7-8 and Exhs. E-F.) As of the date of the filing of the motion on February 4, 2026, Plaintiff has not responded to Defendant's attempts to obtain a new deposition date. (Borrero Decl. ¶ 9.) *FCA's counsel does not discuss any attempt to call Plaintiffs' counsel after receiving the objection to the 2nd continued notice of deposition.*

In opposition, Plaintiff Eliana Nunez concedes her deposition must go forward and apologizes that deposition dates were not timely provided and for the delay. Plaintiffs' counsel states that Plaintiff Eliana Nunez's deposition was not previously scheduled due to a combination of counsel's scheduling unavailability and an inadvertent transition in clerical staffing within SLP resulting in a brief scheduling breakdown. During the relevant period, Plaintiffs' Counsel SLP experienced changes in administrative and support personnel that impacted the handling of calendaring and scheduling matters, including coordination of deposition dates. As a result, the process of obtaining Plaintiff Eliana Nunez's availability and coordinating with defense counsel was unintentionally delayed. Plaintiff Eliana Nunez remains willing to appear for her deposition. (Washington Decl. ¶¶ 3-8.) Plaintiff argues reasons sanctions should not be imposed.

On reply, FCA asserts that *after* the motion was filed, the parties met and conferred by telephone, but the meet and confer still has not resulted in a deposition date for Eliana Nunez. FCA again argues in support of sanctions.

Given Plaintiff Eliana Nunez concedes that her deposition must go forward, the Court intends to grant the motion and either discuss with the parties a specified date for the deposition of Eliana Nunez's deposition or order Eliana Nunez's deposition to occur within 30 days of the hearing.

Sanctions

FCA's notice of motion does not include a request for sanctions as required by Code of Civil Procedure section 2023.040. Instead, in the body of the motion, FCA requests that the Court award it sanctions in the amount of \$1,847.50 against Plaintiff and/or Plaintiffs' counsel. This amount is comprised of 4 hours to prepare the motion, and an anticipated 1.5 hours reviewing the opposition, filing a reply, and appearing at the hearing at \$385 per hour, plus the \$60 filing fee.

The Court intends to deny the request for sanctions. First, sanctions are not properly noticed. Code of Civil Procedure section 2023.040 provides that "[a] request for a sanction shall, *in the notice of motion*, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought."

Second, after January 1, 2026, the code requires that a good faith meet and confer is to occur in person, by telephone, or by videoconference. (Code Civ. Proc., § 2016.040.) Here, the motion was not filed until February 4, 2026. Defendant FCA received Plaintiff Eliana Nunez's objections to the 2nd Continued Notice of Deposition on January 29, 2026, and **no further meet and confer occurred before the motion was filed, let alone a meet and confer in person, by telephone, or by videoconference.** FCA states that at the Court's IDC on March 13, 2026, related to a different discovery issue, the parties represented that they would meet and confer regarding Plaintiff's deposition and did so on April 14, 2026, having a telephonic meet and confer but to date, Plaintiff's deposition has not been scheduled. The telephonic meet and confer should have occurred *before* the motion was filed.

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In light of Plaintiff Eliana Nunez conceding that her deposition should proceed, the Court grants the motion and will discuss with the parties a date certain for the deposition to occur or order Eliana Nunez's deposition to proceed within 30 days of the hearing on the motion.

FCA's request for sanctions is denied based on sanctions not being properly noticed in the notice of motion (Code of Civil Procedure section 2023.040). In addition, after Plaintiff Eliana Nunez served objections to the 2nd Continued Notice of Deposition at the end of January 2026, a meet and confer in

person, by telephone, or by videoconference is not demonstrated to have occurred before the motion was filed as required by Code Civ. Proc., § 2016.040.